
Journal

1970 PLD 470

Court

SUPREME COURT

Date

1970-07-08

Appeal No.

CRIMINAL APPEAL NO. 36 OF 1970

Judge

J MUHAMMAD YAQUB ALI AND M. R. KHAN

Parties

SHAH MU HAMM AD —APPELLANT VERSUS HAQ NAWAZ AND ANOTHER—
RESPONDENTS

Lawyers

AFTAB FARRUKH, ADVOCATE SUPREME COURT INSTRUCTED BY ABDUL KARIM SHEIKH, ADVOCATE-ON-RECORD FOR APPELLANT. MAJOR WAHID-UD-DIN VIRK, ADVOCATE SUPREME COURT INSTRUCTED BY MAQBOOL AHMAD QAIRI, ADVOCATE-ON-RECORD (ABSENT) FOR RESPONDENT NO. 1. ,.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 145

Judgment

Judgment

Muhammad Yaqub Ali, J.—This is an appeal from the order of a learned Judge of the High Court of West Pakistan dismissing Criminal Revision No. 1116 of 1969 preferred by the appellant under section 439, read with section 561-A, Cr. P. C., to call in question the order of the Additional District Magistrate, Gujranwala, dated the 1st October 1969, whereby he had directed the police to seal the shop and the attached workshop in possession of the appellant. The order was made on the report by the police that there was apprehension of breach of peace between the parties concerning the said property.

The appellant complained before the High Court that he had earlier filed a suit in the Court of a Civil Judge on the 12th

September 1969, against the respondent for a declaration that he was a tenant of the disputed premises and for grant of permanent injunction restraining the respondent from interfering with his possession. An ad interim injunction was granted by the Court on the 13th September 1969, for maintaining status quo and that order was in operation when the Additional District Magistrate passed the impugned order which amounted to an abuse of the process of the Criminal Court. It was further alleged that as the civil Court was seized with the subject-matter of the complaint, the Additional District Magistrate did not have the jurisdiction to attach the property in dispute.

The learned Single Judge referred to a large number of precedent cases including *Dilbaz Khan v. The State* and another *Mst. Asafa Sultana v. The State* and another (2) and *Muhammad Akbar v. The State* (3) and concluded thus : (i) That the two jurisdictions; namely, the one of the civil Court under section 42 of the Specific Relief Act and the other of the criminal Court under section 145/146, Cr. P. C., are normally parallel and co-existent, the scope and object being quite distinguishable;

(ii) that as a necessary corollary from this, it will follow that in certain circumstances even a clash of jurisdiction would be inevitable;

(iii) that where recourse to proceedings under section 145, Cr. P. C., is subsequently made merely with a view to frustrate an ad interim order passed by the civil Court earlier in point of time and circumstances do not warrant the inference that a genuine apprehension of a breach of peace is in existence over a dispute of land or water, initiation or continuation of proceedings would not be proper;

that where on the contrary notwithstanding an order of the civil Court regarding an ad interim injunction being in the field the Magistrate is satisfied in regard to the genuine existence of apprehension of breach of peace regarding a dispute over land or water, he shall have the jurisdiction to move in the matter; and

(v) that in a case where the civil Court has appointed receiver or has passed a final decision in regard to a party's entitlement to possession, there will normally be no occasion for the criminal Court to have recourse to this jurisdiction which had been conferred with a limited object and for a temporary period of time, particularly when the decree-holder has got into actual physical possession, unless he is again threatened with ejectment by use of force and the provision under section 145, Cr. P. C., is invoked by the decree-holder.

In Muhammad Akbar v. The State (4) this Court had remarked:

“Normally criminal proceedings should not be postponed pending the disposal of civil litigation connected with the same subject-matter. But where it is clear that criminal liability is dependent upon the result of the civil litigation or is so intimately connected with it that there is a danger of grave injustice being done in the case if there be a conflict of decision being the civil Court and the criminal Court then in such event it is equally clear that the criminal Court has not only the right to but should also stay its hands until the civil litigation is disposed of, for, it is not desirable that when the title to the property itself is in dispute, the criminal Courts should give a finding in respect of the same question.”

These observations fell in the case where the ownership of a motor bus registered in the name of a firm was seriously in dispute in a suit for dissolution of partnership, and a partner of the firm, pending disposal of the suit was being prosecuted on a police challan under sections 411, 379/147, P. P. C. for forcibly retaining the vehicle and the High Court had stayed the proceedings in the criminal case till the disposal of the civil suit. The appeal against the order of the High Court was dismissed on the finding that upon the facts of the case the Court was fully satisfied that the High Court had jurisdiction to pass the impugned order and that the jurisdiction had been exercised upon sound judicial considerations.

In Dilbaz Khan v. The State and another there was a dispute between the parties as to the possession of a Cotton Ginning, Pressing and Oil Seed Factory belonging to Messrs Nichiman Company Limited (Osaka), Japan, and held on lease by Messrs Nichiman Company (Pakistan) Limited. Mr. H. Inoue, the Director of the latter Company had sub-leased the company to Dilbaz Khan on the 1st August 1958, and received Rs. 20,000 as advance rent for 11 months. Possession was delivered to Dilbaz Khan who claimed to have spent a further sum of Rs. 32,000 on the repair of the machines installed in the factory. The dispute arose between the parties whereupon Dilbaz Khan in October 1958, filed a suit in the Court of Civil Judge, Sargodha, and obtained a temporary injunction restraining Mr. H. Inoue from interfering with his possession.

Proceedings for vacation of the stay order were pending when the Station House Officer On the 5th December 1958, submitted a report to the Magistrate for taking action under section 145 of the Code of Criminal Procedure. Thereupon the parties were summoned for the 6th December and after hearing them the Magistrate drew up a preliminary order maintaining that there was a serious dispute between the parties in respect of the possession and dispossession of the factory and civil litigation was going on between them and as the relations were strained there was an imminent danger of breach of peace. He, accordingly, directed the parties to put in their written statements on the 11th December 1958, and in the meantime ordered attachment of the factory and directed the S. H. O., City Police, to take possession. Without adverting to the relevant provisions of the Criminal Procedure Code and the Civil Procedure Code which apply to cases of this nature, the learned Judge relying on the decision in *Di-van Chand and others v. Emperor* (1) and *Mst. Makhana Devi v. Kamala Pat Pam* (2) felt no doubt in his mind that the mere fact that a civil suit is filed in respect of the subject-matter of the dispute is by itself not sufficient to oust the jurisdiction of the Magistrate to attach the property in dispute under section 145(1), Cr. P. C. It was concluded thus ;

"By the filing of the civil suit; the dispute between the parties does not cease to exist and the likelihood of a breach of peace is not in any way lessened."

There is no further discussion of the point under consideration, which in view of a number of conflicting decisions given by various High Courts in the sub-Continent, required more elaborate treatment.

In *Mst. Asa/a Sultana v. The State and another* on which the learned Judge did not choose to rely, the petitioner was the owner of a building which included a shop which had been rented out to Honest Traders through Mr. Abdul Majid Nizami the sole proprietor of that concern, The petitioner obtained an order of ejectment from the Court of Rent Controller and obtained possession through execution of the order by a civil Court. The respondent thereupon moved the Rent Controller and filed an application for restoration of possession of the shop under Rule JOO, Order XXI, Cr. P. C., read with section 151, C. P. C. Simultaneously the Inspector of Police, Incharge, Misri Shah Police Station, submitted a report to a local Magistrate that there was dispute between the parties concerning possession of the shop which was likely to result in breach of peace. The Magistrate on the perusal of the report summoned the parties and directed them to file their written statements. The petitioner thereupon moved the High Court under section 439 of the Code of Criminal Procedure for quashing the proceedings inter alia on the ground that the possession of the shop having been delivered to her in execution of the order of the Rent Controller. It was not open to the Police to initiate proceedings under section 145 of the Code. The learned Judge on consideration of the provisions of the Code and certain decided cases formed the view that the summary proceedings under sections 145 and 146 of the Code were meant to maintain status quo between the parties until the dispute about possession is settled by a civil Court. Consequently, where a civil Court had decided the dispute, it was considered an abuse of the process of the Court to find resort to section 145, Cr. P. C. It was noticed by the learned Judge that under subsection (2) of section 146 the receiver appointed by a Magistrate is to give way to the receiver appointed by a civil Court. This clearly brought out that orders passed under section 145 are only temporary or tentative which remained in the field so long as the rights of the parties are determined by the civil Court. In support of this conclusion reliance was placed on the decisions in *Brahma Nath v. Sunder Nath* *Imtiaz Ali Khan v. Sheikh Badruddin*

Doulat Koer v. Ramshwari Koeri alias Dulin Sahiba Jang Bahadur Singh v. Nazimul Haq and others (2) and *Dilbaz Khan v. The State and another* on which the respondent relied was dissented from which if accepted would in the opinion of the learned Judge result in conflict of jurisdiction between the civil and criminal Courts which could not have been intended by the Legislature. The petition was, accordingly, allowed and the proceedings before the Magistrate set aside as illegal. The learned Single Judge, however, did not agree with this view and relying on *Dilbaz Khan v. The State and another* dismissed the petition filed by the appellant for setting aside the order of the Additional District Magistrate which had the effect of dispossessing him from the suit property and thereby countermanding the order of the civil Court for maintaining status quo.

Leave to appeal was granted to consider the ambit of the jurisdiction of a criminal Court to attach property under section 145(1) of the Cr. P.

C., which is already the subject-matter of an order of civil Court regulating its possession during the pendency of the suit.

At the hearing of the appeal a number of decided cases were cited by the learned counsel from the bar out of which only two Full Bench decisions merit consideration. *Agni Kumar Das v. Mantazaddin and another* (3) and *B. N. Kashyap v. The Crown*

In the *Calcutta* case the applicant was the first party before the Magistrate in proceedings under section 145 of the Code of Criminal Procedure.

He had taken a mortgage in 1906 from one Moktar and his wife Arjatannessa and sued upon if

after the wife's death. He obtained a decree on the 15th September 1919, for sale against Moktar and the heirs of his wife. On the 16th September 1923, he applied to execute the decree alleging that the limitation was saved by an arrangement by which in 1920 he was put in possession of certain portions of the land in lieu of interest. This question was concluded finally by a decree of the Court on the 11th December 1925. The finding was that as against the minor heirs of the wife the decree was not no longer capable of execution. Thereafter the property was sold as against Moktar and purchased by the decree-holder; and application to set aside the sale was dismissed by the High Court by making it clear that no decision was arrived at, or could in those proceedings be arrived at, on the question whether the original owner was Moktar or his wife or on the question of their shares. On the 8th February 1926, the applicant, i.e., decree-holder first party, was put in possession pursuant to his purchase. It was emphasised by the learned Judges that he was not put into actual possession of the homestead and the finding was that he was given possession of the scattered plots of agricultural land by the planting of a bamboo. The Magistrate had found possession to be with Montazaddin and Afajaddin of the second party, the sons of Moktar and heirs of their mother Mst. Arjatannessa. The applicant contended that the Magistrate had no jurisdiction to take action under section 145 and alternatively, that if he did take action that he was bound in law to find that the applicant was in possession by reason of the delivery of possession given by the civil Court on the 8th February 1926, some 15 months before the date of Magistrate's proceedings. On these facts the learned Judges held that the words "actual possession" in subsection (1) of section 145 mean actual physical possession even though wrongful, e.g., that of a recent trespasser in actual physical possession at the time of the proceedings under section 145 and that the word "dispute" in the same subsection means actual disagreement existing between the parties at the time of the proceedings under section 145 even though the question as to the right to possession has already been decided by a civil Court.

The decision in the case is applicable to its own facts which did give rise to a bona fide dispute as to possession of the land purchased by the final party in execution of the mortgage deed. Primarily, there was the time factor, viz. fifteen months had passed since possession of a dubious nature of some of the scattered plots of land was delivered by the planting of a single bamboo. Secondly, the possession of the homestead was admittedly not given and the second party was found in actual physical possession. Rankin, C. J., delivering the leading judgment in the case emphasised this aspect of the case, in the following observations appearing at pages 616 and 617 of the report :

"When large tracts of forest land or churs or inaccessible areas are recovered in ejectment it may well be true that the owner may find it difficult to look after his property or even to come to the Magistrate while dispossession is recent. This, however, does not show that it will be almost idle to appeal to a civil Court if section 145 be applied to the actual facts of a case when breach of the peace is likely, in spite of the civil Court's decree. Still less does it justify a Magistrate in allowing breaches of the peace to take place when- he can obviate them. It shows that certain kinds of property are somewhat inconvenient possessions." "

In *B. N. Kashyap v. The Crown* a report was made to the Police by Mr. Yog Raj. Puri accusing Mr. B. N. Kashyap of offences under sections 409 and 407 of the Indian Penal Code. The allegations were that Mr. Puri wished to deceive his own father into believing that he was not making a large profit in the business, in order to avoid return of a loan for which his father was pressing. He consulted Mr. Kashyap as his confidential friend and it was agreed between them that large sums should be shown as losses incurred on business contracts in favour of Mr.

Kashyap, that cheques for sums of over' Rs. 28,000 were drawn in favour of Mst. Kashyap so as to give colour to these transactions, though the intention was that the money when realised

should be made over to Mr. Puri and finally that Mr. Kashyap had drawn the money from the Bank on the 23rd> December and refused to make the money over. The police took up the matter and eventually arrested, Mr. Kashyap. On th

7th June 1943, Mr. Kashyap brought a civil suit against Mr. Puri for rendition of accounts. He alleged that Mr. Puri had in fact sold and purchased goods on his behalf as his agent, but had failed to give the proper markedrate in settling those;transactions.. The reply given by Mr.

Puri followed the lines of his report to the Police.- Mr." Kashyap " then applied To the Magistrate having cognizance of the criminal proceedings, asking him either to quash or to stay them in view of the institution of the civil suit. The application was rejected and Mr. Kashyap filed a petition in the High Court under section 561-A of the Criminal Procedure Code which at first came before a Single Judge and was finally heard by a Full Bench which rejected the prayer in the view that the judgment to be delivered by the civil Court was' not a relevant fact in the criminal proceedings, under sections 40, 41,

42 and 43 of the Indian Evidence Act. Reliance was. placed on the decisions of the Calcutta High Court in Gogun Chunder ' Ghose v. The Empress Raj Kumari Debi y. Bama Sundari Debi (2), Biswas v. Kalipada Ghose (3) arid Trailokynath Das v. The Emperor (4).

The same view had been taken by the ' Madras High Court in Genanasi-Gamani Nadar v. Vedamuthu Nadar (5) and Ramanamma v.

Appalanarasayya The Calcutta view was also accepted by the Patna High Court in Ranghunath Singh v. King Emperor (7). contrary decisions In re : Markur Kanhaiya Lai v. Bhagwan Das (9), v. Bishen Das (10) and Singh v. Emperor (11) were either not approved or distinguished.

In the Lahore case the learned Judges confined the opinion of the Court to the decision of a civil Court in an action in personam which is different from an action in rem in the present context. An order or decree passed in an action in rem is conclusive of the rights of the parties and is binding on all Courts civil as well as criminal, whereas an order or decree passed in an action in personam binds only the parties in that particular action. In this context a declaration of title given by a civil Court and decree for affirmation of possession passed by it ' may be binding on the defendant alone, but can he call in question the findings of the civil Court on the same facts in a criminal Court and reopen the whole case. .

The view expressed by the learned Judges in the Lahore case that the finding of fact by a civil Court is not relevant before the criminal Court under sections 40, 41, 42 and 43 of the Evidence Act when it is called upon to give a finding on the same facts is also open to question. The finding by the civil Court may not be binding on the criminal Court, as res judicata but it would have been a relevant fact if in the suit brought by Mr.

Kashyap the civil Court had held that no amount was due from him to Mr. Yougraj. The accused could then legitimately maintain that the dispute between the parties was of a civil nature and that the civil Court of competent jurisdiction had given a decision inter partes which is binding on Mr. Yougraj. The opposite view expressed In re : Markur which did not find favour with the learned Judges, has its own merit, in spite of the remarks by Sir Abdur Rehman, J., that there is a great difference between the opinion or finding contained in the judgment of a civil Court and the existence of the judgment as a relevant fact. Dealing with the admissibility of the judgment of the civil Court Heaton J., observed in that case :

"I hold undoubtedly that it was admissible, and for this reason. If we are to administer justice as a

civilized country, if we are to avoid those conflicts between civil and criminal Courts which ordinarily must be fraught with evil and can produce no good, if, in short, we are to make the actual administration of justice in this country bear a proper relation to that which we profess it to be, then we cannot have criminal Court trying over again matters which have been thoroughly dealt with and finally decided by a civil Court of competent jurisdiction.”

These weighty considerations, however, did not appeal to the learned Judges of the Lahore High Court.

In this state of case-law it is necessary to refer to the provisions of law under which a Magistrate may attach the property in dispute and the provisions of the Civil Procedure Code which regulate grant of temporary injunctions by a civil Court and then proceed to determine whether a Magistrate can interfere with the injunction issued by a civil Court of competent jurisdiction. The relevant provision in the Criminal Procedure Code are contained in section 145, namely :

“(1) Whenever a District Magistrate, Sub-Divisional Magistrate or Magistrate of the First Class is satisfied from a police report or other information that a dispute likely to cause a breach of the peace exists concerning any land or water or the boundaries thereof, within the local limits of his jurisdiction, he shall make an order-in writing, stating the grounds of his being so satisfied, and requiring the parties concerned in such dispute to attend his Court in person or by pleader, within a time to be fixed by such Magistrate, and to put in written statements of their respective claims as respects the fact of actual possession of the subject of dispute.”

The succeeding subsections (3) and (4) are not relevant for our purpose except that the second proviso to subsection (4) empowers the Magistrate if he considers the case one of emergency to attach the subject of dispute pending his decision. Section 146(1) confers power on the Magistrate, if he decides that none of the parties was in possession, to attach the property in dispute until a competent Court has declared the rights of the parties thereto or the person entitled to possession thereof. Under subsection (2) where the Magistrate attaches the subject of dispute he may appoint a receiver if no receiver of the property has been appointed by any civil Court, and in the event of a receiver of the property being subsequently "appointed by any civil Court possession shall, be. made: over to him by . the receiver appointed by the Magistrate. .

. The substantive law on the subject of injunctions is contained in the Specific Relief Act. Section 53 of the Act defines temporary injunctions “as are to continue until a specified time or until further order of the Court. They may be granted at any stage of the suit. and are regulated by the Code of Civil Procedure. The provisions relating to grant of temporary . injunctions are contained in. Order XXXIX, rules 1 and 2. These Rules provide :— _ .

Rule 1.—Where in any suit it is proved by affidavit or otherwise—

(a) that any property in dispute in a suit is in danger of being wasted, damaged or alienated by any party to the suit, or wrongfully sold in execution of a decree, or

(b) that the defendants threatens,, or intends, to remove or dispose of his property with a view to defraud his creditors.

the Court may by order grant a temporary injunction to restrain such act, or make such other order for the purpose of staying and preventing the wasting, damaging, alienation, sale, removal or disposition of the property as the Court, thinks fit, until the disposal of the suit or until further orders.

Rule 2.—(1) In any suit for restraining the defendant from committing a breach of contract or other injury of any kind, whether compensation is claimed in the suit or not, the plaintiff may, at any time after the commencement of the suit, and either before or after judgment, apply to the Court for a temporary injunction to restrain the defendant from committing the breach of contract or injury complained of, or any breach of contract or injury of a like kind arising out of the ' same contract or relating to the same property or right.

(2) The Court may by order grant such injunction, on such terms, as to the duration of the injunction, keeping an account,

. giving security or otherwise, as the Court thinks fit.

(3) In case of disobedience, or of breach of any such terms,

. the Court granting an injunction may order the property of the person guilty of such disobedience or breach to be attached,

, and may, also order such person to be detained in .the civil prison for a term not exceeding six months; unless in the meantime the Court directs his release.

Though these Rules are silent as to the conditions on which temporary injunctions may be granted, it is well established by practice that to succeed in obtaining an injunction the plaintiff must make out a prima facie case and show that balance of convenience and inconvenience is in his favour and that irreparable loss will accrue to him if injunction is refused. The material on which the Court acts normally comprises of the pleadings of the parties the affidavits filed by them and the documents accompanying the pleadings.

Next we should refer to section 9 of the Civil Procedure Code which empowers a civil Court to try all suits of civil nature unless expressly or impliedly barred! The trial is concluded by a decree which .is defined in section 2(2) of the Code as “the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit”. Orders such as granting an injunction during the trial of a suit are defined in section 2 “as the formal expression of any decision of a civil Court which is not a decree”. The orders specified in Order X'LIII, rule 1, C. P. C., are appealable during the pendency of the suit. They include orders passed under Rules 1 and 2 of Order XXXIX. In case of other orders where a decision is appealed from any error, defect or irregularity in any affecting the decision of the case may be set forth as a ground of objection in the memorandum of appeal. ,

The provisions of the two Codes set out above have material bearing on the question whether a Magistrate can, under section 145 of the Criminal Procedure Code, act in violation of a decree or the terms of an order passed by a civil Court during the trial of a suit. It becomes apparent at once that the proceedings initiated under section 145, Cr. P. C., are subordinate to a decree or order passed by a civil Court in respect of the property in dispute before the Magistrate. The primary concern of the proceedings under the Criminal Procedure Code is to prevent breach of peace arising out of a dispute concerning 'land' or 'water'. These proceedings though concerning the subject-matter of dispute between the contending parties, do not concern themselves with the adjudication of their rights in the property. The resolution of the dispute lies exclusively in the realm of a civil Court. The orders passed by a Magistrate for attachment of the subject-matter of dispute are therefore of a transitory nature. That is why a Magistrate will not appoint a receiver if the property in dispute is already in the possession of a civil Court through a receiver appointed by it and the receiver appointed by a Magistrate must make over possession to the receiver

appointed by a civil Court subsequently. Section 145 therefore proceeds on the premises that the Magistrate will cease to deal with the possession of 'land' or 'water' in dispute before him as soon as a civil Court is seized with the dispute and has passed a decree declaring the rights of the parties therein or has passed an order regulating possession of the subject-matter of the suit. In such a case, if apprehension of breach of peace prevails, the Magistrate can take action under sections 107 and 151, Cr. P. C., and bind down the party threatening to act in violation of the decree of the Court or the terms of an interim order appointing a receiver or requiring the parties to maintain status quo. A contrary position will indeed lead to anomalous results. '

Take a case in which the plaintiff has been granted declaration of his rights in the property in suit, affirmation of his possession and a perpetual injunction restraining the defendant from interfering with his possession. Can the judgment-debtor thereafter raise a 'dispute' concerning the suit property. Assuming that he threatens to disregard the decree, of the civil Court and to take forcible possession of the property which causes apprehension of breach of peace," will it empower the Magistrate to attach the property and thereby dispossess the decree-holder.

If the answer be in the affirmative then the anxiety expressed in the case of Markur is justified that such a state of affairs is intolerable in a civilised society. Different consideration may of course arise in individual cases for example in an action for possession, the decree might not have been executed within the time prescribed by law and the judgment-debtor thereby acquires a right to continue in possession. In such a case a 'dispute' may well arise as to possession and attract the jurisdiction of a Magistrate under section 145 of the Criminal Procedure Code, Cases in which a perpetual or temporary injunction has been issued restraining the defendant from interfering with the possession of the plaintiff stand, however, on a different footing. A dispute as stated in the Calcutta Full Bench case means an actual disagreement. There can be a disagreement only if either party can ostensibly lay claim to possession of the subject-matter of the dispute. But, if the rights of the parties have already been finally determined and possession has been delivered to the plaintiff in execution of the decree or permanent injunction has been granted in his favour restraining the defendant from interfering with his possession, there is then no scope for any actual disagreement between the parties concerning possession of the subject-matter of the suit. On the contrary, if the judgment-debtor threatens to act in violation of the decree or order of the civil Court, he renders himself liable thereby to punishment for contempt of Court and to be detained in civil prison and his property attached, under Order XXI, rule 32 of the Civil Procedure Code, in case of perpetual injunction and to similar action under Order XXXIX, rule 2(4) of the Civil Procedure Code, in the case of disobedience to a temporary injunction. An Act which amounts to an offence cannot, therefore, be described as a 'dispute' leading to an apprehension of breach of peace within section 145 of the Criminal Procedure Code.

The conclusion, we have reached thus, is that a case in which a civil Court is already seized with the subject-matter of dispute and has passed an order regulating possession thereof or a case in which a decree for possession has been granted or a permanent injunction granted restraining the opposite-party from interfering with the possession of the decree-holder fall, outside the jurisdiction of a Magistrate under section 145, Cr.

P. C. Action can of course be taken always under sections 107 and 151 of the Criminal Procedure Code to prevent breach of peace in case of this nature, but no order for attachment of the property can be made. In the present case the appellant had filed a suit in a civil Court on the 12th September 1969, against the respondent for a declaration that he was a tenant of the disputed property and for grant of permanent injunction restraining the

respondent from interfering with his possession. An ad interim injunction was granted by the

Court on the 13th September 1969, for maintaining status quo, i.e. the possession of the plaintiff was not to be disturbed. This order was in operation when the Additional District Magistrate, Gujranwala, on the 1st October 1969, passed an order under section 145(1) of the Criminal Procedure Code and directed the police to seal the disputed premises. This in effect dispossessed the appellant and thereby cancelled the order of the civil Court dated the 13th September 1969. The order was in our view clearly illegal, no matter how wide the scope of section 145 of the Criminal Procedure Code may be.

The appeal is accordingly allowed and the order of the Additional District Magistrate, Gujranwala, dated the 1st. October

1969, is set aside. Possession of the disputed premises will be

restored to the appellant forthwith.

K. B. A. Appeal accepted

easylaw Case No.

1242697

Download Case

Copyright © 2021 easylaw.ai. All Rights Reserved. | Disclaimer (<https://www.easylaw.ai/disclaimer>)